



CHAPTER xii.

An Act to authorise the Chepstow Gas and Coke Consumers Company to raise additional capital to extend the limits of supply and to change the name of the Company and for other purposes. [27th June 1918.] A.D. 1918.

WHEREAS by the Chepstow Gas and Coke Consumers Act 1857 (in this Act called "the Act of 1857") the Chepstow Gas and Coke Consumers Company (Limited) were dissolved and the shareholders of that company were incorporated as the Chepstow Gas and Coke Consumers Company (in this Act called "the Company") :

And whereas large industrial developments are taking place within and adjacent to the Company's limits and in consequence thereof there has been a large flow of population into the said limits and places adjacent thereto and the demand for the supply of gas therein is increasing and such demand is likely to increase very considerably in the near future :

And whereas in order to meet such increased demand it is expedient to authorise the Company to erect and maintain additional works :

And whereas it is expedient that the Company's existing limits of supply should be extended as by this Act provided :

And whereas it is expedient that new provisions should be made with reference to the quality and testing of the gas supplied by the Company :

And whereas it is expedient to empower the Company to establish certain funds for the benefit of the servants of the Company and other purposes :

A.D. 1918.

And whereas the whole of the capital of the Company consists of ordinary capital and no part thereof is preference capital:

And whereas the following is a statement of the capital and loan capital which the Company have issued and borrowed or are authorised to issue and borrow under the powers in that behalf conferred upon the Company by the Act of 1857:—

CAPITAL.

Description of Shares.	Maximum Dividend per cent.	Total paid up.	Total authorised.
"A" shares - - - - -	10	£ 5,000	£ 5,000
"B" shares - - - - -	7½	2,000	2,000

LOAN CAPITAL.

Description of Loan.	Rate of Interest per cent.	Total borrowed.	Remaining to be borrowed.	Total authorised.
Debenture - - - - -	4	£ 450	£ 1,300	£ 1,750

And whereas it is expedient that the existing capital of the Company should be consolidated and converted into stock in the manner hereinafter contained and that the Company should be authorised to raise additional capital for the purposes of this Act and of their undertaking:

And whereas it is expedient that such other powers should be conferred upon the Company and that such other provisions should be made as in this Act are more particularly set forth:

And whereas the objects aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited as the Chepstow Gas Act 1918 and the Chepstow Gas and Coke Consumers Act 1857 and this Act may be cited together as the Chepstow Gas Acts 1857 and 1918.

A.D. 1918.
Short and
collective
titles.

2. The following Acts and parts of Acts are (subject to the provisions of and so far as applicable to the purposes of this Act) hereby incorporated with and form part of this Act (namely):—

Incorporation of
general
Acts.

The Lands Clauses Acts:

The Gasworks Clauses Acts 1847 and 1871 Provided that section 13 of the former Act shall be read as if the words “or any premises” were inserted after the words “private building” and as if the words “Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances to all consumers” were added at the end of that section:

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say):—

The transfer or transmission of shares;

The borrowing of money by the Company on mortgage or bond;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested;

and the said provisions shall so far as the same are respectively applicable apply to any ordinary and preference stock to be issued under the powers of this Act:

And Part II. (relating to additional capital) Part III. (relating to debenture stock) and Part IV. (relating to change of name) of the Companies Clauses Act 1863 as amended by subsequent Acts.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless

Interpretation.

A.D. 1918. — there be something in the subject or context repugnant to such construction And the expressions—

“The existing limits of supply” means the limits of the Company for the supply of gas under the Act of 1857;

“The added limits of supply” means the area comprising the parishes and part of parish added by this Act to the existing limits of supply;

“The limits of supply” means the limits for the time being for the supply of gas by the Company;

“The directors” means the directors of the Company;

“British thermal units” means British thermal units gross per cubic foot of gas;

“The date of conversion” means such day between the date of the passing of this Act and the expiration of twelve months after the expiration of the present war as may be sanctioned by the Treasury for the conversion of capital provided for by this Act or if no such sanction be given the first day of January or the first day of July next after the expiration of such twelve months.

CHANGE OF NAME.

Change of name.

4. The name of the Company shall be “The Chepstow Gas Company.”

CONSOLIDATION OF CAPITAL.

Conversion and consolidation of capital.

5.—(1) As or from the date of conversion all the five hundred existing Class A shares of the Company and the two hundred existing Class B shares of the Company all of ten pounds each and all of which have been issued and are fully paid up shall be converted and consolidated into one class of stock (in this Act called “ordinary stock”) entitled to a dividend at the rate of seven pounds and ten shillings per centum per annum according to the following scales (that is to say):—

For every existing Class A share thirteen pounds six shillings and eightpence of ordinary stock:

For every existing Class B share ten pounds of ordinary stock.

(2) As from the date of conversion there shall be by virtue of this Act created such nominal amount of ordinary stock as shall be necessary for the purpose of carrying into effect the conversions provided for by this Act and the amounts of ordinary stock to which the holders of existing shares in the capital of the Company shall by virtue of this Act respectively become entitled in substitution for such existing shares shall be vested in such holders as from the date of conversion and shall be forthwith registered in their respective names in the books of the Company subject to the provisions of this Act. Such amounts of ordinary stock as aforesaid shall rank for dividend as from the thirtieth day of June or the thirty-first day of December as the case may be next preceding the date of conversion and as from the same day the existing shares of the Company shall cease to bear any dividend. A.D. 1918.

6. All ordinary stock so created and vested under or by virtue of this Act shall be deemed to be fully paid up and shall be held in the same rights on the same trusts and subject and liable to the same powers provisions declarations agreements charges liens incumbrances and liabilities as immediately before the date of conversion affected the shares in the capital of the Company in respect of which the stock so created is so vested and shall be dealt with applied and disposed of accordingly and so as to give effect to and not revoke any agreement deed or other instrument or any testamentary disposition disposing of or affecting any such share or shares and every such agreement deed or other instrument or testamentary disposition shall take effect with reference to the whole or a proportionate part as the case may be of the stock created under or by virtue of this Act and substituted therefor and trustees executors or administrators and all other holders in any representative or fiduciary capacity of any shares in the capital of the Company are hereby expressly authorised and required to accept any ordinary stock allocated to and vested in them pursuant to the provisions of this Act and any sum paid to them in cash under the provisions of this Act and to hold dispose of or otherwise deal with the same as they might have held disposed of or otherwise dealt with the shares for which such stock created under or by virtue of this Act is substituted and are hereby indemnified in respect of all acts bonâ fide done by them in pursuance of the provisions of this Act. Allocation
of original
capital.

A.D. 1918.
Exchange of
certificates.

7. The Company shall call in and cancel the existing certificates of shares in the capital of the Company and issue in lieu thereof certificates for the stock to which the holders of such shares are by this Act respectively entitled but no holder of any such share shall be entitled to any such certificate of proprietorship under this Act until he shall have delivered up to the Company to be cancelled the existing certificate of proprietorship of the shares in the capital of the Company issued to him before the date of conversion or shall have proved to the reasonable satisfaction of the directors the loss or destruction thereof but if any holder of any existing share in the capital of the Company neglect or omit to send or deliver to the Company his existing certificate or certificates for the period of one year after notice in writing sent by post to the address of such holder appearing in the shareholders' address book of the Company the Company may retain any dividend declared or made payable upon or in respect of the stock substituted under the provisions of this Act for the shares so held by him until such existing certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the Company to have been lost or destroyed and an indemnity is given against any claim in respect of such lost or destroyed certificate to the satisfaction of the directors.

As to frac-
tional parts
of stock.

8. In every case where under the foregoing provisions of this Act a holder of shares in the capital of the Company would be entitled to be registered as the holder of any fractional part of five pounds of ordinary stock the Company in lieu of registering such holder and issuing to him a certificate as holder of any fractional part of five pounds of such stock shall pay to such holder such a sum in cash as shall be equal to the value of such fractional part at the market price on the date of conversion and shall register such holder and issue to him a certificate of the amount of ordinary stock to which he shall be entitled as aforesaid excluding such fractional part and the receipt of such holder for the sum in cash so paid as aforesaid shall be a sufficient discharge to the Company in respect of such fractional part. The Company may either cancel all or any stock in respect of which cash is so paid or issue the same to any willing purchaser thereof in amounts of five pounds or multiples thereof but not otherwise and any loss or expense which may be incurred in connection with such re-issue shall be borne by the Company.

GASWORKS AND LANDS.

A.D. 1918.

9.—(1) Subject to the provisions of this Act the Company may upon the lands described in the schedule to this Act erect maintain alter improve and renew gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing and for supplying gas within the limits of supply.

Powers as to
construction
and main-
tenance of
gasworks
&c.

(2) The Company may also upon the said lands—

(A) Work up and convert the residual products arising directly or indirectly from the manufacture of gas by them:

(B) Purchase the residual products arising from the manufacture of gas by other gas undertakers and therewith manufacture other products of the same kind as the Company are manufacturing from the Company's own residual products:

(c) Purchase from other gas undertakers and elsewhere and use the materials required to work up and convert the residual products so arising from the Company's own manufacture of gas or purchased as aforesaid:

But the Company shall not manufacture chemicals exclusively from raw materials purchased from sources other than gas undertakings or in the manufacture of which the use of residual products produced by the Company or purchased from other gas undertakings is merely subsidiary.

10. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands which the Company are authorised to purchase take and hold under the Act of 1857 and this Act any lands and hereditaments not exceeding in the whole five acres which the Company may from time to time require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands which the Company are authorised to use for such purposes by the Chepstow Gas Acts 1857 and 1918.

Purchase of
lands by
agreement.

11. The Company may purchase or take on lease houses and cottages for any of their employees and offices and show-rooms for the purposes of their undertaking and may erect fit

Dwelling-
houses for
employees
offices &c.

A.D. 1918. up maintain and let any such building upon any lands for the time being belonging or leased to the Company.

Power to
sell and
lease lands.

12. Subject to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands (so far as such provisions are applicable) the Company may sell or let on lease for such period as they think fit or otherwise dispose of any lands or property for the time being belonging to them and which may not at the time be required for the purposes of their undertaking or any easements or rights in or under any lands for the time being belonging to them and may retain and hold or sell and dispose of any interests in or reversion to any lands or property so let and any such sale disposal or lease may be for such consideration and subject to such reservations restrictions and provisions and generally upon such terms and conditions as the Company think fit.

For pro-
tection of
Great
Western
Railway
Company.

13.—(1) If within twelve months of the passing of this Act the Great Western Railway Company (in this section called “the railway company”) give notice in writing to the Company of their desire to acquire the strip of land in the parish and urban district of Chepstow coloured pink on the plan signed by William Wylie Grierson on behalf of the railway company and William Doig Gibb on behalf of the Company and forming part of the lands described in the schedule to this Act the Company shall forthwith sell and convey and the railway company shall purchase all the estate and interest of the Company in such strip of land and the price to be paid by the railway company for the same shall be such as may be agreed between the railway company and the Company or failing agreement as may be settled by arbitration under the provisions of the Lands Clauses Acts with respect to the purchase of lands otherwise than by agreement.

(2) The railway company shall forthwith on completion of the purchase of the said strip of land make at the expense of the railway company and to the reasonable satisfaction of the Company all necessary alterations in any siding lines or rails or other incidental works or apparatus laid or erected for the purpose of connecting the lands described in the said schedule with the railway of the railway company.

EXTENSION OF LIMITS OF SUPPLY.

Extension
of limits of
supply.

14. From and after the passing of this Act the limits of the Company for the supply of gas shall include in addition

to the existing limits of supply the parishes of Tidenham and Llancaut in the rural district of Lydney in the county of Gloucester the parishes of St. Kingsmark Tintern Howick St. Arvans Grange Itton Penterry and Chapel Hill and that part of the parish of Mathern and St. Pierre which was formerly the parish of St. Pierre (and being all that part of the said parish of Mathern and St. Pierre which is not within the existing limits of supply) in the rural district of Chepstow in the county of Monmouth and the Company shall have and may exercise within the limits of supply as so extended all and the like powers and privileges and shall be subject to all and the like duties liabilities and obligations as they may have and are subject to within the existing limits of supply.

A.D. 1918.

CALORIFIC POWER AND TESTING.

15. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be a testing place which shall be provided by the Company on some part of the lands described in the schedule to the Act of 1857 or a new testing place to be provided by the Company in lieu thereof on some part of the lands described in the schedule hereto.

Testing place.

16.—(1) The Company shall provide and thereafter maintain at the prescribed testing place apparatus for testing the calorific power of the gas supplied by them. The apparatus shall be such as may from time to time be agreed upon between the Company and the council of the urban district of Chepstow and shall be used in the mode and under the conditions set forth in the agreement. Failing such agreement the apparatus shall be similar to the apparatus from time to time prescribed by the Metropolitan Gas Referees for testing the calorific power of the gas supplied by the companies referred to in the London Gas Act 1905 and shall be used in the mode and under the conditions for the time being prescribed by the Metropolitan Gas Referees.

Testing for calorific power.

(2) The gas supplied by the Company shall when tested in accordance with the provisions of this Act be of a calorific power of not less than five hundred British thermal units and that power is in this Act referred to as "the standard calorific power."

(3) The provisions of section 12 of the Gasworks Clauses Act 1871 with reference to the testing for the illuminating power

A.D. 1918. shall cease to apply to the Company and sections 28 to 33 of that Act shall in their application to the Company be construed as if calorific power were therein mentioned in lieu of illuminating power.

Provisions as to testing for calorific power.

17. Not more than one testing for calorific power shall be made on any one day. Provided that if on any occasion of testing the calorific power is found to be below the standard calorific power a second testing shall be made on the same day after an interval of not less than one hour and the average of the two testings shall be deemed to be the calorific power of the gas on that day.

The gas examiner shall forthwith deliver a report of the result of his testing to the Company and that report shall be receivable in evidence.

Penalties for deficient calorific power.

18. If the calorific power on any day of the gas supplied by the Company is less than five hundred British thermal units the Company shall be liable to the following penalties in respect of such deficiency (that is to say):—

If the deficiency does not exceed fourteen British thermal units two pounds;

If the deficiency exceeds fourteen British thermal units but does not amount to twenty-eight British thermal units a sum not exceeding five pounds;

For each complete twenty-eight British thermal units of defective power a sum not exceeding ten pounds:

Provided that the Company shall not be liable to more than one penalty in respect of a deficiency of the calorific power of the gas supplied on any one day.

Calorific standard not to apply till testing place and apparatus provided.

19. The provisions of the four immediately preceding sections of this Act shall not come into operation unless and until the Company shall have provided the prescribed testing place and the apparatus for testing referred to in the sections of this Act of which the marginal notes are "Testing place" and "Testing for calorific power" and as from the date when such sections shall come into operation section 46 (Quality of Company's gas) of the Act of 1857 shall be repealed.

Pressure.

20.—(1) All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight-tenths and as from the date when

the provisions of this Act as to calorific power come into operation not less than fifteen-tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer: A.D. 1918.

Provided that all gas supplied by the Company to the Great Western Railway Company shall be supplied at such pressure as to balance a column of water not less than twenty-tenths of an inch in height at the inlet of the primary meter or meters registering the supply to such company.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the testing place or at any public lamp or on the premises of the Great Western Railway Company at the inlet of the primary meter or meters registering the supply to such company as and when he thinks fit test the pressure at which the gas is supplied. The Company shall afford to the examiner all reasonable facilities for making the test.

21. If within one month after the expiration of five years from the coming into operation of the provisions of this Act relating to calorific power or after any subsequent period of five years the Company or any local authority or person who may appear to the Board of Trade to have a substantial interest in the matter apply to the Board of Trade to reduce or increase the standard calorific power or the pressure prescribed by this Act the Board of Trade after hearing the parties and any other persons who appear to the said Board to be interested may make such reduction or increase of the standard calorific power or of the prescribed pressure as they think fit. Revision of
standard
calorific
power or
pressure.

22. No penalty shall be incurred by the Company for insufficiency of pressure defect of illuminating or calorific power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Company. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company. Saving as to
penalties.

ADDITIONAL CAPITAL AND BORROWING POWERS &c.

23. The Company may raise additional capital not exceeding in the whole seventy thousand pounds by the creation and issue of ordinary stock or preference stock or wholly or Power to
Company
to raise
additional
capital.

A.D. 1918. — partially by one or other of those modes respectively No stock shall vest in the person accepting the same until the full price of such stock including any premium obtained upon the sale thereof shall have been paid in respect thereof Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of seventy thousand pounds Provided also that the Company shall not raise by the issue of preference capital a greater amount of such additional capital than forty thousand pounds.

Additional capital to be part of general capital.

24. The additional capital created by the Company under this Act shall form part of the general capital of the Company and save as is otherwise by this Act provided the holders thereof respectively in proportion to the amount of their stock shall be entitled and subject to the like rights of voting and any other rights qualifications privileges provisions and liabilities as other holders of stock of the Company of the same class or description.

Profits of Company limited.

25. The Company shall not in any year pay out of their profits any larger dividend on the additional capital to be raised under the powers of this Act than a dividend at the rate of seven pounds and ten shillings per centum per annum in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital or six pounds per centum per annum in respect of every one hundred pounds actually paid up of such capital as shall be issued as preference capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend which shall have fallen short of those respective rates of dividend.

Additional capital to be sold by auction or tender.

26.—(1) All ordinary and preference stock created under the powers of this Act shall be issued in accordance with the provisions of this section.

(2) All stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided as follows:—

(A) Notice of the intended sale shall be given in writing to the clerk to the district council of every district wholly or partly within the limits of supply and to the secretary of the London Stock Exchange at least

twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply: A.D. 1918.

- (B) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:
- (c) No lot offered for sale shall comprise stock of greater nominal value than one hundred pounds:
- (D) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:
- (E) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any stock which has been so offered for sale and is not sold may be offered at the reserve price to the holders of ordinary and preference stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of stock that if the aggregate amount of stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any stock which has been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and is not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such stock then remaining unsold may be otherwise disposed

A.D. 1918. — of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the respective stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective stock.

Application of excess of profits over authorised rates of dividend.

27. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on any preference capital and the dividend at the authorised rates on the ordinary capital of the Company the excess shall be carried to the credit of the divisible profits of such undertaking for the next following year :

Provided that the sum standing to the credit of such divisible profits shall not at any time exceed the amount required to pay one year's dividend, at the authorised rates.

Power to borrow in respect of additional capital.

28. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital which at the time of borrowing has been raised under the powers of this Act But no sum shall be borrowed in respect of any capital so raised until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of such capital at the time issued together with the premiums (if any) realised on the sale thereof has been fully paid up.

Debenture stock.

29. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under this Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall subject as is mentioned in the section of this Act whereof the marginal note is "Priority of mortgages and debenture stock over other debts" have priority over all principal moneys secured by such mortgages Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

30. All money raised or to be raised by the Company on mortgage or debenture stock under the provisions of any former Act relating to the Company or under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rent-charge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock.

A.D. 1918.
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Priority of mortgages and debenture stock over other debts.

31. The principal moneys secured by all mortgages granted by the Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing of this Act shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were granted have priority over the principal moneys secured by any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company.

Existing mortgages to have priority.

32. Section 28 of the Act of 1857 is hereby repealed but without prejudice to any appointment heretofore made or to any proceedings pending at the passing of this Act. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than two thousand five hundred pounds in the whole.

Arrears may be enforced by appointment of a receiver.

33. If any money is payable to a stockholder or shareholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Receipt in case of persons not *sui juris*.

34. All moneys raised under this Act including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way

Application of money.

A.D. 1918. — of premium from the issue of stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend.

Borrowing
in respect of
authorised
capital.

35. Sections 25 and 26 of the Act of 1857 shall be read and construed as if the Company were by those sections authorised to borrow on mortgage of the undertaking one-third part of the capital which at the time of borrowing has been raised under the powers of that Act.

Issue of
redeemable
preference
stock or
debenture
stock.

36.—(1) The Company may create and issue all or any of the preference stock or debenture stock authorised to be created and issued under the powers of this Act so as to be redeemable on such terms and conditions as may be specified in a resolution of the Company passed at a special meeting convened for the purpose.

(2) If it is so provided in the resolution the Company may—

(A) Call in and pay off the stock or any part thereof at any time before the fixed date of redemption; and

(B) Redeem the stock or any part thereof either by paying off the stock or by issuing to any stockholder subject to his consent other stock in substitution therefor and may for the purpose of providing money for paying off the stock or of providing substituted stock create and issue (subject as regards preference stock to the provisions of the section of this Act of which the marginal note is "Additional capital to be sold by auction or tender") new stock (either redeemable or irredeemable) or reissue stock originally created and issued under this section Provided that the creation and reissue for the purpose of any particular class of stock does not make the total nominal amount of such stock exceed the amount of that class of stock which the Company are for the time being authorised to create.

Capital
redemption
fund.

37. Whereas by reason of the large industrial developments which are taking place in and adjacent to the limits of supply it will be necessary for the Company in order to meet the largely increased requirements for gas in the said limits to establish new gasworks on the lands described in the schedule to this Act and to spend as speedily as possible a very considerable portion of the capital authorised by this Act on the

development and extension of their undertaking and to cease or to largely cease to manufacture gas at their existing works which are insufficient and incapable of being made sufficient to meet such requirements And whereas the new works will be for the most part carried out at a time when the cost of labour and material is abnormal it is expedient in view of the said special circumstances that power should be conferred upon the Company to redeem a certain part of such capital expenditure Now it is hereby provided as follows:—

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- (1) The directors of the Company may if they think fit in any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding one thousand five hundred pounds to a fund to be called "the capital redemption fund":
- (2) Every sum credited to the said fund shall be applied by the directors from time to time for the redemption at a price not exceeding the redemption price of any preference or debenture stock of the Company redeemable wholly or partly in cash created and issued within five years from the date when the Company shall first become entitled under the powers of this Act to raise or borrow money All stock so redeemed shall immediately after the redemption thereof be cancelled and be taken to be extinguished and the directors shall cause the same to be duly noted as so cancelled and extinguished in the books of the Company:
- (3) Any moneys forming part of the capital redemption fund and any income arising therefrom may be invested in any securities in which trustees are for the time being by law authorised to invest trust funds:
- (4) The total amount appropriated to the capital redemption fund shall not exceed one quarter of the total amount which the Company shall have raised or borrowed under the powers of this Act (whether by the creation and issue of ordinary preference or debenture stock or by all or any of those modes) within five years from the date when the Company shall first become entitled to raise or borrow moneys under the powers of this Act:

A.D. 1918.

(5) The Company shall not reissue any stock which shall have been cancelled under the provisions of this section.

Company
not to
convert
borrowed
money into
capital.

38. Notwithstanding anything contained in the Act of 1857 the Company shall not exercise in respect of any moneys borrowed by them the powers of the Companies Clauses Consolidation Act 1845 with respect to the conversion of borrowed money into capital.

Minimum
amounts of
holdings and
transfers of
stock.

39.—(1) Any ordinary stock preference stock or debenture stock of the Company may be issued and be held in amounts of five pounds or of any multiple of five pounds and not otherwise and the Company shall not be under any obligation to register a transfer of any such stock which would reduce the holding of stock of that class of the transferor below or make the holding of stock of that class of the transferee less than five pounds or a multiple of five pounds.

(2) Notice of this enactment so far as applicable shall be stated in all certificates of ordinary stock preference stock or debenture stock of the Company as the case may be.

Interest out
of capital.

40. The Company may charge to capital account the interest accruing during a period not exceeding four years from the date of the commencement of the construction of the gasworks by this Act authorised or such less period as the directors may determine on all capital issued or raised by the Company for the purpose of providing funds for the construction of such gasworks or for other works in connexion therewith to or on which capital may under the provisions of this Act be applied or expended.

BENEFIT FUND &C.

Benefit fund.

41.—(1) The directors may if they think fit in respect of any year appropriate out of the revenue of the Company as part of the expenditure on revenue account any sum not exceeding one halfpenny per one thousand cubic feet of gas supplied by the Company during such year to a fund to be called "the benefit fund":

Provided that the amount of the sums so appropriated and for the time being standing to the credit of the benefit fund shall not at any time exceed the amount which the directors would have been entitled to appropriate to the benefit fund out

of the revenue of the Company at the rate aforesaid during A.D. 1918.
the then preceding five years.

(2) The directors may out of the benefit fund grant a gratuity of any sum or make pension or other allowances payments or benefits to any of the weekly servants of the Company who may be disabled or injured in or may be retired from or become incapacitated through age permanent injury or other infirmity from continuing in the service of the Company or to the widow or family or dependents of any such servant and on such terms and conditions as to contributions by such servants or otherwise as the directors may think fit Provided that it shall not be obligatory on any present or future servant of the Company to become a party to any arrangement made under this Act for securing to him or his widow family or dependents any gratuity pension or other allowance payment or benefit.

(3) The benefit fund shall be applicable for the purposes of this section and for no other purpose whatsoever and no such gratuity pension allowance payment or benefit as is mentioned in this section (other than sick pay) shall be granted or paid to any such servant widow family or dependent otherwise than out of the benefit fund.

(4) The directors may enter into and carry into effect agreements with any insurance company or other association or company for securing to any such servant or the widow family or any dependent of any such servant gratuities pension or other allowances payments or benefits as aforesaid and may make payments out of the benefit fund for the purpose of any such agreement.

(5) The moneys forming the benefit fund or any portion thereof shall be invested in securities in which trustees are by law authorised to invest or in such other manner as may be authorised by resolution of a general meeting of the Company.

(6) Every gratuity pension or other allowance payment or benefit secured made or granted under this Act shall be payable to or in trust for the servant person widow or dependent to whom the same shall be granted and shall not be assignable or chargeable with the debts or other liabilities of such servant person widow or dependent as the case may be.

(7) If the Company shall under the powers of this Act make any scheme involving contributions by their servants such

A.D. 1918. — scheme shall not come into operation until such scheme shall have been registered as the rules of a society under the Friendly Societies Act 1896 and any amendment or variation of such scheme shall not be valid until so registered and the provisions of that Act (except the proviso to subsection (1) of section 8 and section 41) so far as they are applicable and are not inconsistent with the provisions of this Act shall apply (A) as if such scheme were the rules of a society to which the said Act of 1896 applies (B) as if the Company were the trustees of such society (C) as if the benefit fund were the funds of such society and (D) as if persons contributing to and participating in the benefit of such fund were the members of such society.

Power to
directors to
make dona-
tions sub-
scriptions &c.

42. The directors may subscribe or make donations to infirmaries or hospitals which are within the limits of supply and to convalescent homes and similar institutions and to any industrial exhibitions and to the benevolent and sick funds of the employees of the Company and may for any of those purposes apply the funds and revenues of the Company.

Power to
grant pen-
sions &c.

43. The directors may in addition to forming a benefit fund under the section of this Act of which the marginal note is "Benefit fund" grant pensions and retiring or superannuation allowances to officers and servants (other than weekly servants) of the Company and for that purpose may apply the funds and revenues of the Company. Provided that the total amount of the payments made by the directors in any year under the provisions of this section shall not exceed an amount equal to one halfpenny per thousand cubic feet of gas supplied by the Company during such year.

PROVISIONS AS TO THE SUPPLY OF GAS.

Prices in
added limits
of supply.

44. The Company may charge for gas supplied by them within any part of the parishes of Chapel Hill and Tintern to consumers who shall burn the same by ordinary meter such price as the Company think fit not exceeding by more than fivepence per one thousand cubic feet of gas the price for the time being charged by the Company to consumers under like circumstances within the existing limits of supply.

Notwithstanding anything in this section contained the Company may charge in any part of either of the said parishes a price or prices less than the price or prices which they are authorised to charge therein but not less than the

price or prices charged during the same time to ordinary consumers within the existing limits of supply. A.D. 1918

45.—(1) The Company may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within the limits of supply through any other kind of meter or by any other method of supply. Prepay-
ment
meters.

(2) The charge for the hire of any prepayment meter and fittings to be used therewith shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of a meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove.

(3) The charge for the hire of any prepayment meter without fittings shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid or at the rate of ten per centum per annum on the cost of the meter whichever shall be the higher.

(4) The said charges shall include the providing letting fixing repairing and maintenance of the meters and fittings or of the meters (as the case may be) and the cost of collection and other costs incurred by the Company in connexion therewith.

(5) For the purpose of this section the expression “prepayment meter” means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

46. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:— Pipes &c.
between
mains and
meters.

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Company's mains and the meter so far as such pipes and fittings are intended to be covered over :

A.D. 1918.

- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published twice in some newspaper circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company. Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Power to lay
pipes in
private
streets.

47. The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to

public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation in the Act of 1857 and this Act: A.D. 1918.

Provided that nothing in this section contained shall apply to any existing street belonging to and forming the approach to any station or depôt of the Great Western Railway Company except with the consent of that company first being obtained such consent not to be unreasonably withheld nor shall the Company in carrying out the works authorised by this section unreasonably obstruct or interfere with the convenient access to any such street station or depôt.

48. The Company may within the limits of supply lay down and repair take up relay or renew mains pipes and culverts for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with their undertaking and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply *mutatis mutandis* to and for the purposes thereof. Power to lay pipes for ancillary purposes.

49. Notwithstanding anything contained in any enactment to the contrary the Company shall not be obliged to give from any main a supply of gas for any purpose other than lighting in any case where the capacity of such main is insufficient for such purpose or if and so long as any such supply would in the opinion of the Company interfere with the sufficiency of the gas required to be supplied by means of such main for lighting purposes. Amending obligations as to supply of gas.

50.—(1) In any case in which the Company are by virtue of any enactment relating to their undertaking authorised to cut off and discontinue the supply of gas to any premises in consequence of any default on the part of the occupier of the premises it shall be lawful for the Company without prejudice to any other remedy which may be lawfully available to them to disconnect at the meter the service pipe (whether belonging to the consumer or to the Company) and any person who shall reconnect such service pipe with the meter without the consent of the Company shall be deemed to commit an offence within the meaning of section 18 of the Gasworks Clauses Act 1847: As to mode of cutting off supplies.

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Provided that if and so soon as the matter complained of shall have been remedied nothing in this section shall prejudice or interfere with any rights vested in any person by virtue of section 11 of the Gasworks Clauses Act 1871.

(2) For the purposes of this section the Company shall (subject to the conditions specified in section 22 of the Gasworks Clauses Act 1871) have and may exercise the like powers of entry as are exerciseable under the said section 22 for the purposes of that section.

Expenses of
reconnecting
discontinued
supply.

51. In any case in which in consequence of any default on the part of the occupier of any premises the Company have cut off the supply of gas to such premises and the occupier so in default shall desire to resume such supply he shall pay to the Company the expenses of reconnecting the supply and the Company shall not be under any obligation to supply gas to such occupier until he shall have paid such expenses.

Charge for
gas to pre-
mises having
a supply of
electricity or
gas.

52. Where any person has for the purposes of a stand-by only a supply of gas laid on by the Company to any premises used for trade or business purposes for which he has at the same time a separate supply of electricity or gas for power or other purposes the Company shall be entitled to charge and receive from him in respect of the supply of gas so laid on such minimum sum as shall be fixed by the Company not exceeding twenty-five shillings for any one quarter of a year notwithstanding that the ordinary charge for the gas actually consumed in such quarter would amount to a lower sum. Provided that in fixing the amount of such minimum charge the Company shall have regard to the probable maximum supply of gas which might at any time be required for such premises.

Fittings &c.
not subject
to distress
&c. and to
remain pro-
perty of
Company.

53.—(1) Any fittings let for hire by the Company under any statutory powers in that behalf shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be. Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Company as the actual owners thereof.

(2) Subject as hereinafter provided all engines fittings apparatus and appliances (in this section referred to as "fittings") let by the Company on hire or under hire purchase agreements under any statutory powers shall notwithstanding that they be fixed or fastened to any part of any premises in which they may

be situate or to the soil under any such premises at all times
continue to be the property of and removable by the Company
Provided that such fittings are marked or impressed with a
sufficient mark or brand indicating the Company as the actual
owners thereof Provided also that nothing in this section shall
affect the amount of the assessment for rating of any premises
upon which any such fittings are or shall be fixed.

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54. The power to enter premises and to remove pipes meters
and fittings or apparatus conferred upon the Company by
section 22 of the Gasworks Clauses Act 1871 shall extend to all
cases in which any person entering into occupation of any premises
previously supplied with gas by the Company shall not require
to take a supply of gas from the Company or to hire from the
Company all or any of the pipes meters fittings or apparatus
belonging to the Company and let by them on hire to any former
occupier of such premises.

Removal of
fittings
where gas
supply dis-
continued.

55. Every consumer of gas supplied by the Company who
uses a gas engine or any other apparatus or machinery in which
gas is used shall if required to do so by the Company use
an effective anti-fluctuator together with an effective non-return
valve and shall at all times at his own expense keep such
anti-fluctuator and valve in proper repair and in default of his
using or keeping in proper repair such an anti-fluctuator and valve
the Company may cease to supply gas to such consumer The
Company shall have access to and be at liberty to take off
remove test inspect and replace any anti-fluctuator and valve
used by any such consumer at all reasonable times such taking
off removing testing inspecting and replacing to be done at the
expense of the Company if the anti-fluctuator and valve be found
in proper order but otherwise at the expense of the consumer.

Anti-
fluctuators.

56. At least twenty-four hours' notice shall be given to the
Company by every gas consumer either personally at the office
of the Company or in writing before he shall quit any premises
supplied with gas by meter by the Company and in default of
such notice the consumer so quitting shall be liable to pay to
the Company the money accruing due in respect of such supply
up to the next usual period for ascertaining the register of the
meter on such premises or the date from which any subsequent
occupier of such premises shall require the Company to supply
gas to such premises whichever shall first occur Notice of the
effect of this enactment shall be endorsed upon every demand
note for gas charges payable to the Company.

Consumers
to give notice
before re-
moving.

A.D. 1918.

Notice to
discontinue
supply of
gas.

57. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company or be given by the consumer personally at the office of the Company.

Refusal of
supply to
persons in
debt for
other
premises.

58. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas charges and meter rent due from him to the Company the Company may refuse to furnish to him a supply of gas until he pays the same.

Period of
error in
defective
meter.

59. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Company.

Supply in
bulk.

60. The Company may contract with any local authority company or persons authorised to supply gas under Parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Company to lay any mains or other pipes or to interfere with any street beyond their limits of supply.

Power to
vary price
according
to purpose
for which
gas is sup-
plied.

61. Notwithstanding anything contained in this or any other Act relating to the Company the price to be charged by the Company for a supply of gas may vary according to the purposes for which the gas is supplied as may be agreed upon between the Company and the person taking such supply. Provided that the Company shall not under the powers of this section give any preferential price as between any consumers who shall take a supply of gas for the same purpose under like circumstances.

62. For the protection of the Great Western Railway Company (hereinafter referred to as "the Great Western Company") the following provisions shall unless otherwise agreed in writing between the Great Western Company and the Company apply and have effect (that is to say):—

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For further
protection
of Great
Western
Railway
Company.

(1) In laying down and executing or in effecting the repairs or renewals of any mains pipes or other works in the exercise of the powers contained in this Act upon across or in any way affecting the railways lands and property now or hereafter belonging to or used or occupied by the Great Western Company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the Great Western Company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the Great Western Company and only according to such plans and in such manner as shall be submitted to and as shall be previously reasonably approved by him in writing Provided that if the said engineer does not express his approval or disapproval of the said plans within fourteen days after the same shall have been submitted to him he shall be deemed to have approved thereof and if the said engineer shall refuse or neglect to superintend any operation after receiving seven days' notice in writing from the Company the Company may execute the work without his superintendence:

(2) All such works shall be done by and at the expense of the Company except as in this section is otherwise provided and the Company shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or over any level crossing of the railway of the Great Western Company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Company Provided always that should the Great Western Company elect so to do where any mains or pipes require to be laid under or across any level crossing of their railway or over any bridge they may themselves lay the same at the reasonable costs charges and expenses of the Company to the satisfaction of the Company's engineer:

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- (3) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to such railways works or property and so as to cause no interruption to the passage or conduct of traffic over such railways and as little interruption as possible to the traffic at to or from any station thereon :
- (4) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid or the leakage or failure of any such mains pipes or works in under or near to any railway works or property of the Great Western Company the Company shall make compensation to the Great Western Company in respect thereof and the amount of such compensation unless agreed upon shall be determined by arbitration in the manner hereinafter provided :
- (5) If the Great Western Company at any time or times hereafter require of which they shall be the sole judges to construct under any existing powers in that behalf any additional or other works upon their lands or railways or to alter or repair their railways bridges viaducts or works upon across over or under which any of the works of the Company may have been constructed or laid the Great Western Company may on giving to the Company twenty-eight days' notice in writing under the hand of their secretary or general manager or in case of emergency of which their engineer shall be the sole judge after giving such notice as is possible divert support or carry the said works of the Company across over or under their railways works or other property at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be and so as not to interrupt or interfere with the supply of gas more than may be necessary without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works unless damage occurs through negligence or incompetence of the Great Western Company's servants Provided that any works executed by the Great Western Company under this subsection shall be executed under

the superintendence (if the same be given) and to the reasonable satisfaction of the Company's engineer : A.D. 1918.

- (6) Any additional expense which the Great Western Company may reasonably and properly incur in widening altering or maintaining their railways bridges or works by reason of the existence of any mains or pipes of the Company laid or executed under the powers of this Act across or under the same shall be paid by the Company :
- (7) Any dispute or difference which may arise between the Great Western Company and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the President of the Institution of Civil Engineers on the application of the Great Western Company and the Company or either of them and subject as aforesaid in accordance with the provisions of the Arbitration Act 1889.

63. For the protection of the county council of the administrative county of Monmouth (in this section called "the county council") the following provisions unless otherwise agreed to in writing between the Company and the county council shall apply and have effect (that is to say) :—

For protection of Monmouthshire County Council.

- (1) In relation to any main road or county or main road bridge maintainable by the county council section 8 of the Gasworks Clauses Act 1847 as incorporated with this Act shall have effect as if the word "seven" were substituted for the word "three" in that section :
- (2) The Company shall not permit any trench made by them in any main road maintainable by the county council to be opened for a greater consecutive distance than two hundred yards if in such length of two hundred yards there is not room for two carts to pass one another :
- (3) In the case of any main or pipe which it is necessary to lay otherwise than in the roadway over any county or main road bridge maintainable by the county council the same shall be carried either on or alongside such bridge in such manner as the county council may in

A.D. 1918.

writing under the hand of their surveyor reasonably direct and except as aforesaid the Company shall not interfere with the structural part of any such county or main road bridge:

- (4) If for the purpose of rebuilding repairing altering or widening any bridge maintainable by the county council the county council require any alteration either temporary or permanent in the position of any mains or other works of the Company or any support thereto the Company shall with all due expedition at their own expense on receiving notice in writing under the hand of the clerk or surveyor of the county council so to do alter the position or support of any such works in the manner and to the extent required by such notice Provided that during the rebuilding repairing altering or widening of such bridge the county council shall afford all reasonable facilities to enable the Company temporarily to carry their mains or works across any stream or brook so as not to interrupt the continuous supply of gas or to diminish the pressure of such supply through such mains or works:
- (5) If for the purpose of altering the level of or deviating or improving any such main road in or along which any mains or works of the Company have been laid the county council require any alteration in the position of such mains or works the Company shall on receiving notice in writing under the hand of the clerk or surveyor of the county council so to do alter the position of such mains or works in the manner and to the extent prescribed by such notice and the county council shall repay to the Company the expense reasonably incurred by the Company in effecting any such alteration of the position of any such mains or works:
- (6) For the purposes of section 10 of the Gasworks Clauses Act 1847 the reinstatement and making good of any road required by that section shall be deemed as regards any such main road or road over any county or main road bridge as aforesaid to include the application of a sufficient layer of surface metalling of the same specification as that employed by the

county council for the particular carriageway or footway to be reinstated and made good and to include the use of a steam roller on the places where the carriageway has been broken up until the surface thereof has been made uniform with the unbroken surface adjoining : A.D. 1918.

- (7) If the Company shall after notice from the county council under the hand of their surveyor neglect to do or complete any work or act required by subsections (4) (5) or (6) of this section to be done by the Company then and in any such case the county council may do such work or act themselves under the superintendence (if given) of the Company causing as little damage or inconvenience to the Company as the circumstances may admit and the Company shall repay to the county council all expenses reasonably incurred by the county council in connexion with any such work or act or occasioned by such neglect as aforesaid :
- (8) The Company shall pay to the county council the expenses reasonably incurred by the county council in relation to the superintendence by them or their surveyor of any works of the Company to which the provisions of this section relate :
- (9) If any difference shall at any time arise between the county council and the Company touching this section or anything to be done or not to be done thereunder such difference shall be settled by an arbitrator to be agreed upon between them or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such arbitration as aforesaid.

64. For the protection of the Chepstow Rural District Council (in this section called "the rural council") the following provisions shall unless otherwise agreed in writing between the Company and the rural council apply and have effect (that is to say) :— For protection of
Chepstow Rural
District
Council.

- (1) The provisions of the section of this Act of which the marginal note is "For protection of Monmouthshire County Council" shall with all necessary modifications apply and extend for the benefit of the rural

A.D. 1918.

council as though the expression "the county council" meant the rural council and the respective expressions "main road" and "county or main road bridge" meant respectively roads and bridges vested in and repairable by the rural council:

- (2) Notwithstanding anything to the contrary contained in the section of this Act of which the marginal note is "Prices in added limits of supply" the Company shall not at any time be entitled to charge for gas supplied by them within any part of the rural district of Chepstow any higher price than that for the time being charged by them to ordinary consumers in any other part of the limits of supply except that in relation to the parishes of Chapel Hill and Tintern the Company may charge therein any higher price authorised by this Act in any year succeeding any year in which the annual consumption of gas in those two parishes together amounts to less than five million cubic feet:
- (3) Any dispute or difference between the Company and the rural council touching the true intent and meaning of the last preceding subsection or as to anything to be done or not to be done thereunder shall be referred to a chartered accountant or other fit person to be agreed on between the Company and the rural council or failing agreement to be appointed by the Board of Trade at the request of either party:
- (4) If after the expiration of five years from the termination of the present war the Company have not laid down mains for the supply of gas within any parish or part of a parish forming part of the rural district of Chepstow and included within the limits of supply the local authority of the district or any company or person may apply for an Act of Parliament or Provisional Order for the purpose of providing such a supply and for the repeal of the powers of the Company in that behalf.

For protection of Gloucestershire County Council.

65. The following provisions for the protection of the county council of the administrative county of Gloucester (hereinafter in this section called "the county council") shall notwithstanding anything in this Act contained and unless

otherwise agreed in writing between the county council and the Company apply and have effect (that is to say):— A.D. 1918.

- (1) The notice required by section 8 of the Gasworks Clauses Act 1847 incorporated with this Act (except for repairing consumers' service pipes as to which three days' notice shall be sufficient and in cases of emergency) shall be given to the surveyor of the county council (in this section referred to as "the county surveyor") by the Company not less than seven clear days before the Company commence to open or break up any main road vested in and repaired by the county council:
- (2) The plan required by section 9 of the Gasworks Clauses Act 1847 shall be accompanied in the case of a county bridge by a section and in the case of a road by a description of the proposed works and shall except in cases of emergency be delivered to the county council or the county surveyor by the Company not less than twenty-one days before the Company commence to open or break up any such bridge or road:
- (3) The Company shall not in the construction or maintenance of the works by this Act authorised or in the maintenance of any existing works of the Company without the previous consent in writing of the county council under the hand of their clerk interfere with the structure of any county bridge or approach wholly or partly vested in and repaired by the county council:
- (4) All mains or other works to be laid or constructed in along or across or in any way affecting such road bridge or approach shall be constructed or laid under the superintendence if the same be given and to the reasonable satisfaction of the county surveyor and in such position where practicable in or at the side thereof:
- (5) The surplus paving metalling or materials removed during the laying of mains or other works shall not be placed on the metalled portion of such road without the written consent of the county surveyor and subject to such conditions and directions as he may reasonably require or give:

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- (6) All paving metalling or materials excavated during the laying of any such mains or works under the powers of this Act on any main road or in upon or across any county bridge and not required by the Company for the purpose of reinstating the road or bridge may be used by the county council for the maintenance and repair of any main or other road in the county and the Company shall on receiving notice from the county surveyor forthwith remove the same to such place or places not more than one mile from the place of excavation as the county surveyor may direct and if the Company fail to do so the county surveyor may remove the same but the county council shall repay to the Company any expenses which the Company may reasonably incur in complying with any directions of the county surveyor under this subsection :
- (7) All works shall be executed so as not to stop the traffic and except so far as in the reasonable opinion of the county surveyor is absolutely necessary so as not to impede or interfere with the traffic over or along any such road bridge or approach and the Company shall not without the consent of the county surveyor open or break up at any one time a greater consecutive length of such roads bridges and approaches than two hundred yards if in such length there is only sufficient room for one cart to pass :
- (8) For the purposes of section 10 of the Gasworks Clauses Act 1847 the reinstatement and making good of any road required by that section shall be deemed as regards any such main road or the roadway over any county or main road bridge as aforesaid to include the application of a sufficient layer of pitching and surface metalling of the same specification as that employed by the county council for the particular carriageway or footway to be reinstated or made good and to include the use of a steam roller on the places where the carriageway has been broken up until the surface thereof has been made uniform with the unbroken surface adjoining :
- (9) The county council shall not except in case of their negligence be liable for any claim for damages in

respect of any injury which may be caused to any mains or other works belonging to the Company through the reasonable and proper use by the county council of any steam roller not exceeding twelve tons in weight: A.D. 1918.

- (10) Nothing in this Act contained shall in any way limit or affect the powers of the county council to divert improve alter widen or reconstruct any such road or to remove alter widen or rebuild any such bridge or approach in alongside or near to which such mains or other works of the Company are laid in the same manner as they might have diverted improved removed altered widened reconstructed or rebuilt any such road bridge or approach if this Act had not been passed and in the event of any such road bridge or approach in alongside or near to which the mains or other works are laid being diverted improved removed altered widened reconstructed or rebuilt as aforesaid the Company shall (at the expense of the county council) within such reasonable time as the county surveyor may prescribe alter to such position as he may fix such mains or other works and replace the same to his reasonable satisfaction. Provided that before such diversion improvement removal alteration widening reconstruction or rebuilding of any such road bridge or approach shall be commenced the county council shall (except in case of emergency) give twenty-one days' notice in writing to the Company of their intention to carry out such works and shall afford all reasonable facilities for temporarily carrying the mains or other works along such road or across or under any stream or brook so as not to interrupt the continuous supply of gas through such mains or works or to diminish the pressure therein:

- (11) If any difference shall arise between the county council and the Company under this section such difference shall be settled by an arbitrator to be appointed by the Board of Trade on the application of either party and subject thereto in accordance with the provisions of the Arbitration Act 1889.

A.D. 1918.

For pro-
tection of
Lydney
Rural
District
Council.

66. The provisions of the section of this Act the marginal note of which is "For protection of Gloucestershire County Council" shall apply mutatis mutandis to the Lydney Rural District Council and the district roads within the Lydney Rural District and for the purpose of such application all references in the said section to the county council and the county surveyor respectively shall mean the Lydney Rural District Council and the district surveyor respectively.

AS TO DIRECTORS—AUDITORS—VOTING RIGHTS—INTERIM
DIVIDENDS—MEETINGS—CLOSING OF REGISTERS &C.

Notice of
candidature
for office of
director or of
opposition to
re-election of
director.

67. From and after the passing of this Act no person not being a retiring director of the Company shall be eligible to be elected at any general meeting a director of the Company unless notice in writing is given to the secretary or left at the principal office of the Company fourteen days at least before the day of election that such person will be proposed for election as a director of the Company and the secretary of the Company shall during such fourteen days and on the day of election fix a copy of every such notice so delivered in some conspicuous place in such office Any such person must have been the holder of the qualifying amount of stocks or shares for at least three months prior to his election In the case of a retiring director or directors notice of opposition to his or their re-election shall be given in like manner.

As to ap-
pointment of
managing
director.

68.—(1) The directors may appoint any one of their body to be a managing director of the Company either for a fixed term or without any limitation as to time and may remove or dismiss him from office and appoint another in his place.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall ipso facto immediately cease to be a managing director.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by all or any of those modes.

(4) The directors may entrust to and confer upon any managing director such of the powers exerciseable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers. A.D. 1918.
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69. As from the date of conversion section 31 of the Act of 1857 shall be read and construed as if the qualification of a director therein referred to were the possession in his own right of stock of the Company of the nominal value of not less than one hundred pounds. Amendment
of section 31
of Act of
1857.

70. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 no person shall be disqualified from being a director of the Company by reason of his holding any office or place of trust or profit under the Company or by reason of his being interested in any contract with the Company nor shall any director be required to cease from voting or acting as a director by reason of his accepting any such office or place of trust or profit or becoming interested in any such contract Provided that in the case of his being or becoming interested in any contract with the Company whether such interest shall arise before or after his appointment as a director the nature of his interest in the contract shall be disclosed by him at the meeting of the directors at which the contract is determined on if his interest then exists or in any other case at the first meeting of the directors after the acquisition of his interest or after his appointment and also in the next annual report of the Company and that no director shall as a director vote in respect of any such contract and if he does so vote his vote shall not be counted but this prohibition shall not apply to any contract by or on behalf of the Company to give to the directors or any of them any security by way of indemnity. Directors
holding
office under
or contract-
ing with
Company.

71. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 the attorney of any shareholder or stockholder duly authorised in writing may appoint a proxy to vote for and on behalf of the shareholder or stockholder and for that purpose may execute on behalf of the shareholder or stockholder the necessary form of proxy Provided that the instrument appointing the attorney shall be transmitted to the secretary of the Company at the same time as the instrument appointing the proxy. As to ap-
pointment of
proxies.

A.D. 1918.

Joint
holders.

72. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any share or stock any one of those persons may vote at any meeting either personally or by proxy in respect of the share or stock as if he were solely entitled thereto but if more than one of the joint holders be present at any meeting personally or by proxy that one of the said persons so present whose name stands first in the register in respect of the share or stock shall alone be entitled to vote in respect thereof Several executors or administrators of a deceased member in whose name any share or stock stands shall for the purposes of this section be deemed joint holders thereof.

Annual
meeting of
Company
and interim
dividend.

73.—(1) The ordinary general meeting of the Company shall be held in each year within four months of the end of the financial year of the Company or at such other time as the directors may appoint.

(2) The directors may in any year declare and pay an interim half-yearly dividend on any class or classes of shares or stock in the capital of the Company out of the profits of the Company without the sanction or direction of a general meeting but no such half-yearly dividend shall exceed one half of the amount of the maximum yearly dividend payable on such shares or stock.

Quorum of
general
meetings.

74. Section 72 of the Companies Clauses Consolidation Act 1845 shall in its application to the Company be read and construed as if the quorum for any meeting of the Company (whether ordinary or extraordinary) held after the date of conversion were not less than seven stockholders personally present and holding or representing by proxy not less than one-twentieth of the capital of the Company for the time being issued and entitling the holders to vote in respect thereof.

Votes of
stockholders.

75.—(1) At all general meetings of the Company held after the date of conversion every holder of ordinary stock and (subject as hereinafter mentioned) of preference stock in the capital of the Company shall have one vote in respect of every five pounds of such stock but nothing in this section shall alter any rights of voting as existing under the Act of 1857 at any general meeting of the Company held before the date of conversion.

(2) Except as is otherwise expressly provided by the resolution creating the same no person shall be entitled to a vote in respect of any stock to which a preferential dividend is assigned.

A.D. 1918.

76. The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating within the limits of supply and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

Closing of transfer books previous to declaring interim dividend.

77. In addition to the powers which the directors of the Company may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary and auditors of the Company.

Directors may determine remuneration of secretary &c.

78. The prescribed number of auditors shall be one but the number may be increased to two by a resolution of the Company passed at a general meeting and such auditor or auditors shall be a member or members of the Institute of Chartered Accountants or the Society of Incorporated Accountants and Auditors or an accountant or accountants approved by the Board of Trade and need not hold stock or shares of the Company but nothing in this section shall prevent any person who at the date of the passing of this Act is an auditor of the Company continuing to act as such auditor.

Auditors.

79. Proceedings for the recovery of any demand made under the authority of this Act or any other Act relating to the Company or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter Provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of demands.

80. Save as is otherwise by this Act expressly provided all offences against this Act or any other Act relating to the Company and all penalties forfeitures costs and expenses imposed

Recovery of penalties &c.

A.D. 1918. or recoverable under this Act may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Several sums
in one
summons.

81. Where the payment of more than one sum by any person is due to the Company under this Act or any other Act relating to the Company any summons or warrant issued for the purposes of those Acts or any of them in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Power to
apply funds.

82. The Company may from time to time apply for or towards all or any of the purposes of this Act and for or towards the general purposes of their undertaking to which capital is properly applicable any sums of money which they have already raised or are authorised to raise under and by virtue of the Act of 1857 or which may be in their possession or under their control and which are not required for the purposes to which they are by that Act made specially applicable :

Provided that the powers conferred by this section shall not be exercised by the Company during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Repeal.

83. The following sections of the Act of 1857 are hereby repealed (that is to say):—

Section 10 (Actions not to abate);

Section 11 (As to recovery of gas rates due at commencement of this Act);

Section 12 (Debts due to and by the original company to be paid to and by the Company);

Section 30 (General meetings);

Section 34 (First directors);

Section 36 (Auditor);

Section 37 (Company to supply vacancies if all the directors resign &c.);

Section 43 (Consumption of gas by meter);

Section 45 (Power to remove pipes from unoccupied premises);

Section 48 (Power to test the purity of the gas—penalty in case of default);

Section 49 (Cost of experiment to be paid according to the event);

Section 52 (Several names in one warrant); and

Section 54 (Small sums recoverable in county courts).

84. The Company shall not under the powers of this Act raise or borrow any money (except for the payment of the costs charges and expenses referred to in the section of this Act whereof the marginal note is “Costs of Act”) during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Consent of
Treasury to
raising of
money.

85. Nothing in this Act shall exempt the Company or their undertaking from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament.

Saving for
general Acts.

86. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any land or hereditaments water or other pipes or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods without the consent in writing of the Commissioners of Woods on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners are hereby authorised to give).

Crown
rights.

87. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company and may in whole or in part be charged against revenue.

Costs of Act.

A.D. 1918.

The SCHEDULE referred to in the foregoing Act.

Certain lands in the parish and urban district of Chepstow in the county of Monmouth containing 8 acres 2 roods and 21 perches or thereabouts belonging or reputed to belong to and in the occupation of the Company being parts of the enclosures numbered 176 and 186 on the $2\frac{1}{500}$ Ordnance map of the said parish (second edition 1902) (Sheets XXXI. 5 and 6) bounded on the south-easterly side thereof by the railway of the Great Western Railway Company on the south-westerly side thereof by lands belonging or reputed to belong to Alice Mary Dyke Poore William Alves Raikes and George Carwardine Francis and in the occupation of Charles Langham and numbered 185 on the said map on the westerly and partly on the northerly sides thereof by lands belonging or reputed to belong to and in the occupation of Samuel Sharp and numbered 186 on the said map on other part of the northerly side thereof by a strip about 20 feet wide of a spinney or woodland lying on the south side of and adjoining the southern boundary of lands belonging or reputed to belong to and in the occupation of Samuel Sharp and numbered 169 on the said map and on the north-easterly side thereof by lands belonging or reputed to belong to and in the occupation of Samuel Sharp and numbered 170 on the said map.

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